

24STCV30068 24STCV30068

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-22

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Case Number: 24STCV30068 Hearing Date: July 22, 2026 Dept: 512

HEARING

DATE: Weds., July 22, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Tati, et al. v. Nissenson COMPL. FILED: 11-14-24

CASE NUMBER: 24STCV30068

NOTICE:

OK

PROCEEDINGS: MOTION TO CONTINUE TRIAL AND ALL TRIAL RELATED DATES

MOVING PARTY: Defendant Lenard Nissenson

RESP. PARTY: Plaintiffs Ramya Tati and Naga Vadapalli

MOTION TO CONTINUE TRIAL

(CRC, Rule 3.1332)

TENTATIVE RULING:

Defendant Lenard

Nissenson's Motion to Continue Trial and All Trial-Related Dates is GRANTED.

Jury Trial is CONTINUED TO January

4, 2027 at 8:30 a.m. in Department 512 of Stanley Mosk Courthouse. Final Status Conference is scheduled for December 18, 2026 at 8:30 a.m. in Department 512 of Stanley Mosk Courthouse. Parties

are required to appear in person at the Final Status Conference.

Considering that the parties have expressed interest to attend mediation, the Court schedules a Status Conference Re: Meet and Confer Efforts to Attend Mediation for August 20, 2026 at 8:30 a.m. in Department 512 of Stanley Mosk Courthouse. Prior to the hearing, the parties are ordered to discuss whether they wish to attend private mediation, or a Court-referred settlement conference (e.g. Resolve Law LA Virtual MSC Program). If the parties wish to attend private mediation, the name of the mediator and the date of the mediation is to be provided to the Court at the next hearing date. Defense counsel is to initiate the conference call to discuss the issues within 10 days of this order. Plaintiff's counsel is to initiate a follow-up call with Defense counsel to discuss the issues within 10 days of the first call.

Parties are ordered to follow Department 512's courtroom rules for trial preparation.

Moving party is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on July 9, 2026 ☐ Late ☐ None

REPLY: Filed
on July 15, 2026 ☐ Late ☐ None

ANALYSIS:

I.
Background

On November 14, 2024, Plaintiffs Ramya Tati and Naga Vadapalli ("Plaintiffs") filed an action against Defendant Lenard Nissenson ("Defendant") alleging causes of action for Motor Vehicle and General Negligence. (Compl., pp. 1, 3.) The underlying action arises from a motor vehicle accident between the parties on November 30, 2022, at "the I-5 Freeway at or near Triggs Street exit, in the city of Los Angeles, County of Los Angeles, State of California." (Compl., MV-1.)

On January 6, 2025, Defendant filed an Answer.

On June 26, 2026, Defendant filed the instant Motion to Continue Trial and All Trial-Related Dates (the "Motion").

On July 9, 2026, Plaintiffs filed an Opposition.

On July 15, 2026, Defendant filed a Reply.

II.

Legal Standard & Discussion

Parties' Arguments

Defendant moves

to continue the trial date of August 31, 2026, to January 11, 2027, or on a similar date, on the following grounds: Plaintiff underwent a surgery on May 4, 2026, related to the underlying action, and Defendant "needs the opportunity to propound written discovery, obtain deposition testimony from the surgeon regarding the Surgery, obtain full, subpoenaed records regarding the Surgery, obtain discovery on the factoring/funding and payment information related to the Surgery, and have our experts review all of these materials and conduct any additional discovery that results from their findings." (Motion, p. 2, Phelps Decl., ¶ 6.) Defendant states proceeding to trial without this information would be highly prejudicial to Defendant "as he will be forced to incur significant fees and costs in preparing for trial without the highly pertinent information of Plaintiff Naga's recent complicated Surgery which directly relate to the Plaintiff's

claims and damages alleged in the Complaint”; the parties’ prior stipulation to a 6-week trial continuance was not enough time to conduct all pertinent post-surgery discovery; the trial date is upcoming; and there has only been one short trial continuance in this matter. (Motion, Phelps Decl., ¶¶ 7-13, 16-17.)

Finally, Defendant also states that Defendant will be unavailable during October 2026, and “both parties have expressed a desire to mediate this matter, and continuing the trial will allow the parties to continue to work together towards mediation.” (Motion, Phelps Decl., ¶¶ 14-15.)

In Opposition, Plaintiffs oppose a trial continuance as one continuance has already been granted; continuing the trial by 4.5 months would “effectively grant Defendant two bites at the same discovery request based on the same set of facts Defendant has possessed since 2024”; a six-week trial continuance has already been granted; Defendant fails to demonstrate why discovery cannot be completed prior to the existing trial date; and Plaintiffs will suffer prejudice by a delay of trial as the case has been pending over two years regarding the underlying 2022 collision. (Opp., pp. 5-6.) Plaintiffs provide evidence that shows Defendant was aware Plaintiff was a candidate for the subject surgery in 2024; Plaintiff was deposed in June 2025; and Plaintiffs served verified supplemental discovery responses in June 2026. (Opp., Dolle Decl., ¶¶ 2-9, Exhs. 2-3, 7-8.)

In Reply, Defendant contends that there is a material difference between a speculative surgery and a completed surgery for discovery purposes, and Plaintiffs’ attempt to conflate the two is inapt. (See Reply, p. 2.) Following the May 4, 2026, surgery and receiving Plaintiffs’ June 2026 supplemental discovery responses, Defendant “acted diligently by promptly seeking a continuance and pursuing the discovery made necessary by Plaintiff Vadapalli’s significantly changed medical condition.” (Opp., p. 3.) Further, Defendant provides evidence that Defendant attempted to notice pertinent depositions but there were objections by Plaintiffs and thus the depositions did not occur; Defendant’s retained orthopedic expert recently told Defendant he is unavailable during a portion of the current trial; Defendant’s retained orthopedic expert is unable to complete a review of post-operative evidence before trial; and Defendant anticipates filing motions to compel outstanding depositions. (Reply, pp. 3-4, Exhs. A-C.)

Analysis

California Rules of Court, Rule

3.1332, subdivision (c) states: "Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The Court may grant a continuance only on an affirmative showing of good cause requiring the continuance." Circumstances that may indicate good cause include: the excused unavailability of a party, trial counsel, or witness; the substitution of trial counsel if the substitution is required in the interests of justice; the addition of a new party in certain circumstances; a party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or a significant, unanticipated change in the status of the case. (Cal. Rules of Court, subd. (c)(1)-(7).)

The Court may also look to the following factors in determining whether a trial continuance is warranted: (1) proximity of the trial date; (2) whether there was any previous continuance, extension, or delay of trial due to any party; (3) the length of the continuance requested; (4) the availability of alternative means to address the problem that gave rise to the motion; (5) the prejudice that parties or witnesses will suffer as a result of the continuance; (6) if the case is entitled to preferential trial setting; (7) the court's calendar; (8) whether trial counsel is engaged in another trial; (9) whether all parties have stipulated to the continuance; (10) whether the interests of justice are best served by the continuance; and (11) any other fact or circumstance relevant to the fair determination of the motion or application. (See generally Cal. Rules of Court, rule 3.1332, subd. (d)(1)-(11).)

Here, the Court finds the Motion makes an affirmative showing that good cause exists for a four-month trial continuance in this matter. The Motion and evidence before the Court demonstrate Defendant has acted diligently following Plaintiff's May 2026 surgery but will suffer prejudice if unable to complete post-surgery discovery prior to trial. (See Motion, Phelps Decl., ¶¶ 6-17; Reply, Exhs. A-C.) Further, Defendant presents evidence that the parties are interested in mediation and settlement discussions (Motion, Phelps Decl., ¶¶ 14-15), and an expert for Defendant is unavailable for the current trial date. (Reply, p. 4, Exh. B.) Thus, the Court finds that a trial continuance would give the parties time to complete discovery and adequately prepare for trial.

Further, the Court notes that this is only the second continuance in this matter, the continuance request is limited, the interests of justice are best served by a continuance, and

Plaintiffs will not suffer prejudice from a brief trial continuance.

For these reasons, the Motion is
GRANTED.

III.

Conclusion & Order

Based on the
foregoing, Defendant Lenard Nissenson's Motion to Continue Trial and All
Trial-Related Dates is GRANTED.

Jury Trial is
CONTINUED TO January 4, 2027 at 8:30 a.m. in Department 512 of Stanley Mosk
Courthouse. Final Status Conference is
scheduled for December 18, 2026 at 8:30 a.m. in Department 512 of Stanley Mosk
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